

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: October 31, 2025

TIME: 9:00

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 7	20CV366503	Spartan Tank Lines vs Anna Le	Motion: Leave to Amend Judgment Judgment creditor's unopposed motion is GRANTED. "[T]he failure to file an opposition creates an inference that the motion ... is meritorious." (<i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410.) The judgment shall be amended to add the following names nunc pro tunc: (1) Suong Thao Phuong, dba KS & Associates, Inc.; and (2) KS & Associates, Inc." The name of PHUNG shall be amended nunc pro tunc to include: "(1) Suong Thao Phung, dba KS & Associates, Inc.; and (2) KS & Associates, Inc." The assignment order and turnover order shall be amended nunc pro tunc to add the following: "(1) (1) Suong Thao Phung, dba KS & Associates, Inc.; and (2) KS & Associates, Inc." The permanent restraining order shall be amended to add the following: "(1) Suong Thao Phung, dba KS & Associates, Inc.; and (2) KS & Associates, Inc." Moving party shall prepare the final order and amended documents within 10 days of the date of the hearing.

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Calendar Line 2

Case Name: *Roziland Blue vs Second Harvest of Silicon Valley*

Case No.: 24CV432543

Defendant moves the Court for an order that Plaintiff appear for an independent neuropsychological evaluation (IME). The IME is not the issue. More pressing is Defendant's request that the Court use its discretion to order the IME without a requirement that the raw test data be provided directly to Plaintiff's counsel, and instead to order such data disclosed only to an expert retained by Plaintiff. Defendant also asks the Court to deny Plaintiff's request in opposition to limit the length of the IME below the "industry standard."

In *Randy's Trucking v. Superior Court* (2023) 91 Cal.App.5th 818, the Court of Appeal held that the superior court did not abuse its discretion in compelling the disclosure raw data to plaintiff's counsel pursuant to a protective order. (*Id.*, at p. 842). As the court explained, a plaintiff has a right to take discovery and cross-examine defendant's expert witnesses, which includes being able to examine the expert on the matter upon which the expert's opinion is based and the reasons for that opinion. (Evid. Code, § 721, subd. (a).) Without raw data, plaintiffs cannot effectively scrutinize the way the data was collected, determine if there are discrepancies, and cross-examine the neuropsychologist on the basis and reasons for the neuropsychologist's opinion. (*Randy's Trucking, supra*, 91 Cal.App.5th at p. 838.) The appellate court also rejected the argument that the disclosure should be made only to the plaintiff's expert, explaining (among other things) that a party "should not be forced to retain an expert to gain access to these materials." (*Ibid.*)

Here, the Court interprets "findings" and "the results of all tests made" in Code of Civil Procedure section 2032.610 broadly to include raw testing data. Indeed, a distinction is drawn in the section between "results" and "conclusions." This interpretation also promotes the well-established policy in favor of broad pre-trial disclosure that runs throughout the Civil Discovery Act. And for the reasons well stated in *Randy's Trucking, supra*, the Court finds that an appropriate balance is struck by requiring disclosure to Plaintiff's counsel subject to a protective order. This allows Plaintiff access to the material necessary to cross-examine Defendant's expert and prepare for trial, and it will sufficiently minimize the risk of improper or undue distribution of the data to third parties. As disclosure of raw test data to Plaintiff's counsel falls within the discretion of the trial court, the Court exercises its discretion in favor of Plaintiff. (*Randy's Trucking, supra*, 91 Cal.App.5th at p. 837.)

Defendant's attempt to distinguish *Randy's Trucking* is not persuasive. As a threshold matter, Defendant's proffered evidence of a substantial or growing opinion in the psychological community lacks foundation. Defendant has not even submitted a declaration from its own expert, instead relying on defense counsel's submission of hearsay statements and documents, including the "Collective Statement" (Van Hespín Decl., Ex. A).

As for the Collective Statement, even if the Court were to take it into account, the Court is not persuaded. The Collective Statement emphasizes that "[o]nly individuals with proper training and professional obligations to protect the tests should have access to the materials in question." (Van Hespín Decl., Ex. A ¶ 2.) This would, on its face, seem to include attorneys. The Collective Statement also expresses concerns about the material becoming "available to the general public." (*Id.*, at ¶ 2, 3, 6 ("general release"), 7 ("in public", "general public